IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.141

C.A.(CAA)/15(AHM)2023

Proceedings under Section 230-232

IN THE MATTER OF:

Marwadi Commodity Broker Pvt Ltd **.....Applicants**
Marwadi Shares and Finance Pvt Ltd

Order delivered on: 25/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Parth Contractor, Advocate along with Pranjal Buch, Advocate

ORDER

This is an application filed under Section 230-232 of the Companies Act, 2013, for seeking approval of the Scheme of Demerger. It is first motion application whereby, the petitioners are seeking dispensation of the various meetings of the Equity Shareholders and Creditors. On the query that what is that division which is proposed to be demerged, the Ld. Counsel submits that from the Balance Sheet which is attached with the Scheme it is not possible to point out as to what is that division but as per the Scheme, there are two divisions and out of those, one division is proposed to be demerged. The Ld. Counsel to file the balance sheet of the corresponding division which is proposed to be demerged. Furthermore, in accordance with the provisions of Section 230(2)(b) of Companies Act, whether the required disclosures are made by way of affidavit need to be stated. The required balance sheet as well as required disclosures of an affidavit could be filed within the next two weeks. List the matter for further consideration on 23.08.2023.

-Sd- -Sd-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

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